

IMO MEPC 72 Meeting Summary

May 9, 2018

The Marine Environment Protection Committee (MEPC) of the International Maritime Organization met for its 72ND session in London during 09-13 April 2018.

Liberia actively participated in the plenary sessions, working groups on the Reduction of Greenhouse Gas Emissions from Ships, Ballast Water Review Group and the drafting group on Amendments to Mandatory Instruments.

Reduction of Greenhouse Gases from Ships

The Committee finalised and adopted the Initial IMO Strategy on Reduction of GHG Emissions from Ships and approved an associated MEPC resolution. This marks a historic milestone in IMO's continued commitment to reducing GHG emissions from international shipping and, as a matter of urgency, aims to phase them out as soon as possible in this century.

The initial strategy represents a framework for IMO Member States, setting out the future vision for international shipping, the levels of ambition to reduce GHG emissions and guiding principles; and includes candidate short-, mid- and long-term further measures with possible timelines and their impacts on States.

The initial IMO Strategy has three levels of ambitions, as follows:

- Carbon intensity of the ship to decline through implementation of further phases of the energy efficiency design index (EEDI) for new ships:**
review with the aim to strengthen the energy efficiency design requirements for ships with the percentage improvement for each phase to be determined for each ship type, as appropriate;
- Carbon intensity of international shipping to decline:**
reduce CO₂ emissions per transport work, as an average across international shipping, by at least 40% by 2030, pursuing efforts towards 70% by 2050, compared to 2008; and
- GHG emissions from international shipping to peak and decline:**
to peak GHG emissions from international shipping as

soon as possible and to reduce the total annual GHG emissions by at least 50% by 2050 compared to 2008 whilst pursuing efforts towards phasing them out as called for in the Vision as a point on a pathway of CO₂ emissions reduction consistent with the Paris Agreement temperature goals.

Work will now commence on developing follow up actions from the initial strategy at the next intersessional working group scheduled for September 2018. In 2019, work on the three step approach (data collection, data analysis and decisions) will begin with a view to creating a final strategy by 2023. The initial strategy is the first milestone set out in IMO's *"Roadmap for developing a comprehensive IMO Strategy on reduction of GHG emissions from ships"* and will be monitored and reviewed on a 5-yearly basis.

Roadmap

Spring 2018 (MEPC 72)	Adoption of the Initial Strategy including, inter alia, a list of candidate short-, mid- and long-term further measures with possible timelines, to be revised as appropriate as additional information becomes available
January 2019	Start of Phase 1: Data collection (Ships to collect data)
Spring 2019 (MEPC 74)	Initiation of 4 th IMO GHG Study using data from 2012-2018
Summer 2020	Data from 2019 to be reported to IMO
Autumn 2020 (MEPC 76)	Start of Phase 2: data analysis (no later than autumn 2020) Publication of Fourth IMO GHG Study for consideration by MEPC 76
Spring 2021 (MEPC 77)	Secretariat report summarizing the 2019 data pursuant to regulation 22A.10 Initiation of work on adjustments on Initial IMO Strategy, based on Data Collection System (DCS) data
Summer 2021	Data for 2020 to be reported to IMO
Spring 2022 (MEPC 78)	Phase 3: Decision step Secretariat report summarizing the 2020 data pursuant to regulation 22A.10
Summer 2022	Data for 2021 to be reported to IMO
Spring 2023 (MEPC 80)	Adoption of Revised IMO Strategy, including short-, mid- and long-term further measure(s), as required, with implementation schedules IMO Secretariat report summarizing the 2021 data pursuant to regulation 22A.10

Air Pollution and Energy Efficiency

Prohibition on the carriage of non-compliant fuel oil

The Committee

- Approved draft amendments to regulation 14 of MARPOL Annex VI concerning the prohibition on the carriage of non-compliant fuel oil for combustion purposes for propulsion or operation on board a ship and to the form of the Supplement to the IAPP Certificate, with a view to adoption at MEPC 73. The Committee also agreed that it is not necessary to cross reference the equivalent provisions in regulation 4.1 to the revised regulation 14.1 of MARPOL Annex VI. However, it was noted that the carriage of non-compliant fuel under equivalent arrangements is not explicitly addressed in regulation 14.1, although it is considered in paragraph 2.3.3 of the Supplement to the IAPP Certificate. Consequently, this may be a topic for consideration at MEPC 73.
- Approved a circular on Guidance on best practice for fuel oil purchasers/users for assuring the quality of fuel oil used on board ships. In relation to best practice for the quality of fuel to be used, it should be noted that engine and equipment manufacturers may have additional requirements which should also be considered. It should be further noted that although the purchaser/user may choose to use one of several testing protocols, MARPOL annex VI sets the procedures for compliance and enforcement, which overrides any other testing requirements.
- Consider future proposals in relation to guidance on best practice for fuel oil suppliers with a view to developing IMO guidance at MEPC 73.

Energy Efficiency

- Approved the draft MEPC circular on Sample format for the Confirmation of Compliance, early submission of the SEEMP Part II on the ship fuel oil consumption data collection plan and its timely verification pursuant to regulation 5.4.5 of MARPOL Annex VI.

The Confirmation of Compliance (CoC) for SEEMP Part II has no expiry date) and is to be issued before the end of 2018.

Ballast Water Management Convention

Noting that the BWM Convention entered into force on 8 September 2017 and consequent to the recommendations of the GESAMP Ballast Water Working Group (BWWG), the Committee considered various issues relating to the BWM Convention and agreed to:

- Revise Procedure (G9) as a consequence of the revision of Guidelines (G8) and agreed that Procedure (G9) does not need to be made into a code under the Convention.
- Approve a draft BWM.2 circular on the data gathering and analysis plan for the experience-building phase. This includes an updated timeline where the analysis of all data available has been completed and the package of amendments submitted to the Parties to the Convention by MEPC 79 (Autumn 2022).
- Further consider the analytical procedures for sampling and analysis at PPR 6, with a view to adding to the data gathering and analysis plan for the experience-building phase.
- Approve BWM.2/Circ.43/Rev.1 on revised Guidance for Administrations on the type approval process for ballast water management systems.
- Consider future comments for the development of guidance on the validation of the compliance of individual BWMS with regulation D-2 of the BWM Convention in conjunction with their commissioning. Additionally, consider future proposals for an amendment to regulation E-1.1.1 of the BWM Convention. Indicative text was developed by the Ballast Water Review Group which is included in the Annexes to the Committee's final report and which will form the basis for future comments.
- Consider future proposals clarifying when elements introduced by the Guidance on contingency measures under the BWM Convention should be included into ballast water management plans.

Use and Carriage of Heavy Fuel Oil in Arctic Waters

The risks to the marine environment in arctic waters from the use and carriage of heavy fuel oil are evident. Proposals were presented for mitigating the risks and ranged from banning HFO entirely in arctic waters to

analysis of all potential measures. The Committee however was clear that before work on these measures can begin, a clear definition of Heavy Fuel Oil needs to be developed, taking MARPOL Annex I regulation 43 (Special Requirements for the Use or Carriage of Oils in the Antarctic Area) into account. Following discussions, the Committee considered tasking the Sub-committee on Pollution Prevention and Response (PPR) with developing such a definition and developing guidelines on the mitigating measures, with a view to proposing a ban on HFO in Arctic waters in an appropriate timeframe. However, following much discussion, it was eventually decided to continue the consideration of the matter at MEPC 73.

Marine Plastic Litter

In response to the increasing problem, and in line with the United Nations' Sustainable Development Goal 14 on reducing marine pollution, the Committee agreed task PPR to develop an action plan to address marine plastic litter from ships by 2020. Proposals will be forwarded to MEPC 73 for consideration, taking into account MAPROL Annex V and the UN Food and Agriculture Organization (FAO) and the governing bodies of the London Convention / Protocol will be invited to submit their input into this process.

Biofouling

The Committee agreed to start a review of the *2011 Guidelines for the control and management of ships' biofouling to minimize the transfer of invasive aquatic species* (resolution MEPC.207(62)), using the performance measures set out in section 3 of the Guidance for evaluating MEPC.1/Circ.811 as a basis, with a view to amending the Guidelines, if required.

Amendments to Mandatory Instruments

The Committee adopted amendments to mandatory instruments in relation to the following issues. Relevant MEPC resolutions, as indicated below, were approved:

- BWM Convention: regulations A-1 and D-3 to make the BWMS Code mandatory.
- BWM Convention: regulation B-3 concerning the implementation schedule of ballast water management for ships.

- BWM Convention: regulations E-1 and E-5, concerning endorsements of additional surveys on the International Ballast Water Management Certificate.
- BWM Convention: determination of the survey referred to in regulation B-3.
- MARPOL Annex VI: concerning ECAs and the required EEDI for ro-ro cargo ships and ro-ro passenger ships.
- IBC Code: concerning the Model form of the International Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk.
- BCH Code: concerning the Model form of the Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk.

In addition, and following the adoption of the amendments to regulations A-1 and D-3 of the BWM Convention above, the Committee finalised and adopted the draft Code for Approval of Ballast Water Management Systems (BWMS Code).

Furthermore, the Committee approved the unified interpretation (UI) of appendix I of the BWM Convention and a new BWM.2/Circular will be issued accordingly. It is to be noted that once the BWMS Code has entered into force, the UI will be updated to incorporate the suggested references to the BWMS Code.

The next session of the Committee, MEPC 73, is scheduled for 22-26 October 2018.

For further information please contact: imo@liscr.com

PROVISIONAL LIST OF RESOLUTIONS AND CIRCULARS APPROVED BY MEPC 72

MEPC.304(72)	Initial IMO Strategy on Reduction of GHG Emissions from Ships
MEPC.296(72)	Amendments to the International Convention for the Control and Management OF Ships' Ballast Water and Sediments, 2004 – Amendments to regulations A-1 and D-3 (Code for Approval of Ballast Water Management Systems (BWMS Code))
MEPC.297(72)	Amendments to the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004 – Amendments to regulation B-3, (Implementation schedule of ballast water management for ships)
MEPC.298(72)	Determination of the survey referred to in regulation B-3, as amended, of the BWM Convention
MEPC.299(72)	Amendments to the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004 – Amendments to regulations E-1 and E-5, (Endorsements of additional surveys on the International Ballast Water Management Certificate)
MEPC.300(72)	Code for approval of Ballast Water Management Systems (BWMS code)
MEPC.301(72)	Amendments to MARPOL Annex VI, (ECAs and required EEDI for ro-ro cargo ships and ro-ro passenger ships)
MEPC.302(72)	Amendments to the International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC CODE) – (Model form of International Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk)
MEPC.303(72)	Amendments to the Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (BCH CODE) – (Model form of Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk)
MEPC.1/Circ.875	Guidance on best practice for fuel oil purchasers/users for assuring the quality of fuel oil used on board ships
MEPC.1/Circ.876	Sample format for the confirmation of compliance, early submission of the SEEMP Part II on the ship fuel oil consumption data collection plan and its timely verification pursuant to regulation 5.4.5 of MARPOL Annex VI
BWM.2/Circ.66	Unified Interpretation of Appendix I (Form of the International Ballast Water Management Certificate) of the BWM Convention, Appendix I – Form of the International Ballast Water Management Certificate, "Date installed" in relation to "Method of ballast water management used"
BWM.2/Circ.67	Data gathering and analysis plan for the experience-building phase associated with the BWM Convention
BWM.2/Circ.33/Rev.1	Guidance on scaling of ballast water management systems
BWM.2/Circ.43/Rev.1	Guidance for Administrations on the type approval process for ballast water management systems
Circular Letter 3837	Amendments to MARPOL Annex VI